

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #03	CCRB Case #: 201701821	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/07/2017 1:50 PM	Location of Incident: 59th Street and Columbus Circle subway station	18 Mo. SOL 8/7/2018	Precinct: 18		
Date/Time CV Reported Thu, 02/16/2017 4:40 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/16/2017 4:40 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Chelsea Ren	16080	957995	TB DT01
2. POM Roger Maharaj	03383	956864	TB DT01

Officer(s)	Allegation	Investigator Recommendation
A . POM Roger Maharaj	Abuse: Police Officer Roger Maharaj questioned § 87(2)(b)	A . Unsubstantiated
B . POF Chelsea Ren	Abuse: Police Officer Chelsea Ren questioned § 87(2)(b)	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB, via telephone, on February 16, 2017.

On February 7, 2017, at approximately 1:50 p.m., at the 59th Street and Columbus Circle subway station in Manhattan, § 87(2)(b) was approached by PO Roger Maharaj and PO Chelsea Ren after going past the turnstiles and was asked to produce his metro card (**Allegations A and B**). § 87(2)(b) showed his metro card to PO Maharaj, after which PO Maharaj returned it and allowed § 87(2)(b) to continue on his way. There were no summonses issued or arrests made as a result of this incident. § 87(4-b) § 87(2)(g)

MTA footage of the incident was obtained. The footage captures PO Maharaj and PO Ren against a wall inside of the subway station and it captures them approaching § 87(2)(b)



201701821_20170331_1300_DM.mp4

Snag Video 1

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b)
- As of April 19, 2017, § 87(2)(b) has not filed a Notice of Claim against the City of New York (BR 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers' CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
- PO Maharaj and PO Ren have been members of the NYPD for two years. This is their first CCRB complaint.

Potential Issues

- The camera that captured the incident is positioned at a relatively large distance from the incident, so the parties' features are less than clear. The footage, however, corroborates the circumstances of the police interaction as described by § 87(2)(b) given that the officers – who have a significant height difference in the video – are against a wall and approach the male § 87(2)(b) soon after he goes past the turnstiles.

Findings and Recommendation

Explanation of Subject Officer Identification

- There were no Stop, Question, and Frisk reports generated as a result of this incident (BR 03, 04).
- A BADS search for arrests in the 18th Precinct and 20th Precinct on the date of the incident determined that the only officers to make arrests for transit-related crimes were from Transit District 1 (BR 05).

- § 87(2)(b) described the male officer that stopped him as being of Hispanic or Indian descent, approximately 5'9" tall, with an average build, approximately 35 years old, short black hair, and in uniform. § 87(2)(b) described the female officer as Asian, approximately 5'4" tall, with a thin build, approximately 30 years old, black hair, and in uniform. A search of CTS determined that PO Ren is the only Asian female assigned to Transit District 1, which covers the incident location. The Transit District 1 roll call determined that PO Ren was partnered with PO Maharaj on the date of the incident and that they were assigned to post 102/103, which covered the stations located at 59th Street/8th Avenue and 59th Street/Broadway (BR 06). PO Maharaj is a § 87(2)(b) Asian male § 87(2)(b) with black hair and brown eyes (BR 07). PO Ren is a § 87(2)(b) Asian female § 87(2)(b) with black hair and brown eyes (BR 08). § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Roger Maharaj questioned § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Chelsea Ren questioned § 87(2)(b)

On February 7, 2017, at approximately 1:30 p.m. § 87(2)(b) entered the 1 train subway station at 59th Street and Columbus Circle in Manhattan, used his reduced fare metro card, and went past the turnstiles. PO Maharaj and PO Ren were sitting near a wall inside of the station and approached § 87(2)(b). PO Maharaj then allegedly asked § 87(2)(b) if he could see his metro card. § 87(2)(b) was agitated and annoyed because he had been asked to show his metro card by officers less than a month prior, so he stated to the officers, “You know, I was asked to do this not so long ago. OK, I’ll do that. Sure.” § 87(2)(b) then showed the officers his metro card and stated, “Better than being shot, right?” PO Maharaj did not respond to § 87(2)(b)’s comments, proceeded to give back § 87(2)(b)’s metro card, and stated, “Thank you.” The officers did not provide § 87(2)(b) with a reason for the stop, and he continued on his way (BR 09).

PO Maharaj and PO Ren did not have any independent recollection of this incident, even after being provided with context about the incident and being shown § 87(2)(b)’s photograph. PO Maharaj noted that he only had two stops noted in his memo book, but they were unrelated to this incident. PO Ren noted that she had a one stop in her memo book at 3 p.m., but it was unrelated to this incident. Both PO Maharaj and PO Ren explained that there is a reduced fare metro card issued to disabled people with their photographs on it, and that the turnstiles light up red whenever a reduced fare metro card is used. PO Maharaj did not recall stopping anyone on the date of the incident because he believed that they used a reduced fare metro card improperly. PO Ren did not recall stopping anyone on the suspicion that they improperly used a reduced-fare metro card on the date of the incident (BR 10, 11).

PO Maharaj and PO Ren did not have any memo book entries related to this incident (BR 12, 13). There were no Stop, Question, and Frisks report generated as a result of this incident (BR 03, 04).

The MTA footage shows PO Maharaj and PO Ren, against a wall inside of the subway station. They then walk towards a metal pillar after getting the attention of § 87(2)(b). The metal pillar obstructs § 87(2)(b) so only the officers are visible. The officers interact with § 87(2)(b).

§ 87(2)(b) for approximately 15 seconds, after which the officers walk back to the wall and § 87(2)(b) continues on his way (See Snag Video).

Under the Metropolitan Transportation Authority, any individual over the age of 65 or an individual who has a serious mental illness (and is receiving Supplemental Security income benefits), is blind, has a hearing impairment, ambulatory disability, the loss of both hands, or mental retardation and/or other organic mental capacity impairments is eligible for a reduced-fare metro card (BR 15). When an officer asks questions that would cause a person to reasonably believe that he or she is suspected of wrongdoing, the encounter becomes a common-law inquiry requiring that the officer has founded suspicion that criminality is afoot. New York v. Hollman, 79 N.Y.2d 181 (1992) (BR 16).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A** and **B** be **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Squad: _____

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date